

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO MECHANICAL
CORP. D/B/A CURTISS-WRIGHT STEAM AND
AIR SOLUTIONS, STEPHANIE LANIER, AND
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

DEFENDANTS' REPLY IN SUPPORT OF THEIR MOTION FOR SANCTIONS

Defendants Curtiss Wright Electro-Mechanical Corporation, Stephanie Lanier, and Shanie Sablitsky (collectively "Defendants"), by and through their undersigned counsel, respectfully submit this Reply in Support of their Motion for Sanctions. Plaintiff's Response (ECF No. 294) does not meaningfully address the grounds for sanctions identified in Defendants' Motion. Instead, Plaintiff digs in on her position and confirms her deliberate refusal to comply with the Court's December 15 Order. (ECF No. 251). Rather than responding to the substance of Defendants' arguments, Plaintiff repeats objections the Court already overruled and advances factual assertions that are demonstrably incorrect.

Plaintiff's Response attempts to shift attention away from her own obligations by accusing Defendants of withholding discovery, misrepresenting disclosures, and producing "incomplete and unreliable" information. These arguments ignore the substance of the Motion before the Court and fail to establish any lawful basis to excuse Plaintiff's noncompliance with the Court's Order or her

discovery obligations. For the reasons discussed below and in Defendants' Motion for Sanctions, Defendants' Motion should be granted.

I. Plaintiff Fails to Engage With Defendants' Grounds for Sanctions.

In their Motion for Sanctions, Defendants point out that Plaintiff failed to produce nearly all of the discovery the Court explicitly ordered her to serve by January 30, 2026, including her tax returns and income records, her social-media materials, the contents of the flash drive she submitted to the Court, and all communications and documents she provided to or received from the Naval Inspector General. (ECF No. 292 at 3). Plaintiff concedes that she refused to produce the categories of discovery explicitly required by the Court's December 15 Order. (ECF No. 294 at 2). She does not dispute that she refused to produce her tax returns and income records, her therapy or medical records while insisting on pursuing emotional-distress damages, the contents of her flash drive, or any documentation relating to her alleged whistleblower complaints to the Naval Inspector General. The record further reflects that Plaintiff did so willfully. She not only ignored the Court's December 15 Order but also multiple reminders of her obligations, including Defendants' January 15 letter and Defense Counsel's January 30 email.

Plaintiff's Response offers no legal justification for these refusals. Instead, she repeats the same objections that the Court overruled in its December 15 Order, asserting that the information sought is irrelevant, disproportionate, or intrusive. (ECF No. 294 at 2). The Court already rejected these arguments. *See* ECF No. 251. Accordingly, sanctions are warranted because Plaintiff confirms that she willfully withheld discovery, depriving Defendants of materials necessarily to defend against Plaintiff's causes of action, in defiance of the Court's Order.

II. Plaintiff's Attempt to Deflect Are Disingenuous and Do Not Excuse Her Noncompliance.

Instead of engaging with the merits of Defendants' arguments in the instant Motion for Sanctions, or advancing arguments to excuse her noncompliance (for which there are none), Plaintiff reverts to baseless, and unrelated claims that Defendants have not complied with their discovery obligations. These arguments have no merit and fail to excuse Plaintiff's non-compliance with the Court's clear orders. For the elimination of doubt, Defendants address each in turn below.

A. Plaintiff's Claim That She Was Denied Rule 26(a)(1)(A)(iv) Disclosures Is Incorrect.

Plaintiff asserts that Defendants failed to provide mandatory insurance disclosures under Rule 26(a)(1)(A)(iv). Because of her pro se status, the Court's initial Scheduling Order (ECF No. 53) did not impose any requirement on the Parties to make Rule 26(a)(1) initial disclosures. Plaintiff never requested any such disclosures in this case until January 8, 2026, when she asked if Defendants had any insurance applicable to this case. Defendants provided the requested information the same day. *See Ex. A, January 8 Emails regarding insurance disclosures.* As such, Plaintiff's argument related to insurance disclosures is unfounded and has no bearing on Defendant's Motion.

B. Plaintiff's Assertions Regarding Comparator Evidence and Other Discovery Ignore the Untimeliness of Her January 8 Requests.

Plaintiff contends that Defendants withheld comparator evidence, training documentation, and wage records. This is all discovery that Plaintiff first requested in discovery requests she served on January 8, 2026—after the discovery period had closed. The Court stated that discovery requests served after the December 15 Order would be untimely and that there is no duty to respond. (ECF No. 251, p. 24). Plaintiff knows this and has been reminded by Defendants that her January 8 discovery requests were untimely and therefore not subject to any obligation to respond.

See Ex B, *Emails Regarding Plaintiff's Untimely Discovery Requests*. The fact that Defendants have not responded to discovery served after the discovery deadline does not excuse Plaintiff's refusal to comply with the Court's December 15 Order, compelling her to respond to discovery.

C. Plaintiff's Reliance on a FOIA Response Is Misleading and Does Not Contradict Defendants' Discovery Responses.

Plaintiff further argues that Defendants' discovery responses are "unreliable," relying on a FOIA response she attaches to her Response. Specifically, Plaintiff points out that Defendants have denied receiving funding from the Department of Defense/Navy, which she claims is inconsistent with a FOIA response that she received. This is not accurate. The FOIA response attached to Plaintiff's Response concerns a single transaction involving the Department of Transportation and a third entity unrelated to this case, predating Plaintiff's employment, and having no relationship whatsoever to any claim or defense in this case. Nothing in that document contradicts Defendants' discovery responses. This FOIA response clearly does not show a transaction between the Department of Defense or Department of the Navy and Curtiss-Wright Electro-Mechanical Corporation, Plaintiff's employer. Plaintiff's argument is therefore misleading and is not a good-faith basis for refusing to comply with the Court's discovery Order.

In fact, this is emblematic of a wider issue that underlies Defendants' Motion for Sanctions. This FOIA response from the Department of Transportation was withheld from Defendants in discovery (even though Defendants requested copies of all documents received from subpoenas and third parties) and is being disclosed for the first time in Plaintiff's Response when she feels the need to use it against Defendants. No doubt, if not properly sanctioned, she will continue to spring evidence on Defendants when she thinks that doing so is to her benefit, thwarting the purpose and goals of discovery and significantly prejudicing Defendants. Plaintiff's open defiance of this Court's orders demonstrate that she cannot be trusted to not introduce

undisclosed evidence without the dismissal of the claims for which she has withheld evidence. Accordingly, Plaintiff's claim that undisclosed FOIA response shows that Defendants' discovery responses are unreliable is incorrect and such a claim is emblematic of Plaintiff's continued efforts to "hide the ball" that is likely to continue to occur in this case if Defendants' Motion for Sanctions is not granted.

III. Plaintiff's Suggestion of a Mutual Extension of Discovery Must Be Rejected.

Plaintiff concludes her Response by suggesting that the Court "order mutual compliance" or otherwise reopen discovery. This request must be rejected. The Court already stated—clearly and in all capital letters—that no further extensions of the discovery deadline would be granted. (ECF No. 251 p. 24). Allowing Plaintiff to obtain additional discovery, which she served knowing it to be untimely, would reward her defiance of the Court's Order and impose unfair, additional burdens on Defendants, who fully complied with their own discovery deadlines. Plaintiff's request demonstrates precisely why sanctions are necessary: she seeks to convert her own strategic withholding of discovery into a basis for reopening discovery to obtain additional, untimely information. Granting such relief would further multiply motion practice in a case already marked by extensive, unnecessary disputes.

IV. Conclusion

Plaintiff's Response fails to rebut any of the grounds for sanctions raised in Defendants' Motion. It confirms that she refused to comply with the Court's December 15 Order; that she continues to assert objections previously overruled by the Court; that she advances factually inaccurate claims concerning discovery disclosures; and that she seeks to profit from her own misconduct by requesting additional discovery opportunities despite the Court's express prohibition. Plaintiff's deliberate, willful, and repeated refusal to comply with her discovery

obligations has caused substantial prejudice to Defendants. For these reasons, and for those set forth in Defendants' Motion for Sanctions, Defendants respectfully request that the Court sanction Plaintiff, including dismissal of Plaintiff's claims or such other sanctions as the Court deems appropriate.

Respectfully submitted this 25th day of February, 2026.

s/ T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Email: Chase.Samples@jacksonlewis.com

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Joseph.Valenza@jacksonlewis.com

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ATTORNEYS FOR DEFENDANTS

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORPORATION d/b/a
Curtiss-Wright Steam and Air Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405- RMG-MGB

CERTIFICATE OF SERVICE

The undersigned certifies that on February 25, 2026, a copy of the foregoing **DEFENDANTS' REPLY IN SUPPORT OF THEIR MOTION FOR SANCTIONS** has been served upon the following by Email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

Exhibit A

From: Samples, T. Chase (Greenville)
Sent: Thursday, January 8, 2026 5:10 PM
To: Debra Nelson
Cc: Valenza, Joseph V. (Greenville)
Subject: RE: Mandatory Insurance Disclosures – Rule 26(a)(1)(A)(iv)

Ms. Nelson:

Pursuant to Fed. R. Civ. P. 26(a)(1)(A)(iv), Curtiss Wright does not have employment practices liability insurance and is not aware of any insurance policy that provides coverage for the claims at issue in this case. As such, there are no responsive documents to produce.



T. Chase Samples

Attorney at Law

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Suite 700

Greenville, SC 29601

Direct: (864) 672-8034 | Main: (864) 232-7000

Chase.Samples@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson [REDACTED] >
Sent: Thursday, January 8, 2026 12:41 PM
To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>
Subject: Mandatory Insurance Disclosures – Rule 26(a)(1)(A)(iv)

Counsel,

On January 8, 2026, Plaintiff served the Sixth Request for Production seeking Defendant's insurance policies and related coverage documents.

These materials are subject to **mandatory disclosure** under Federal Rule of Civil Procedure 26(a)(1)(A)(iv) and are not discretionary.

Please confirm that Defendant will produce all responsive insurance documents—including policies, declarations pages, endorsements, reservations of rights, remaining limits, and any applicable self-insurance or reinsurance materials—**no later than January 30, 2026**, the close of discovery.

This correspondence is sent to satisfy Rule 37(a)(1)'s requirement to attempt resolution without court intervention.

Sincerely,
Debra Nelson
Pro Se Plaintiff

Exhibit B

From: Samples, T. Chase (Greenville)
Sent: Friday, January 9, 2026 9:00 AM
To: Debra Nelson
Cc: Valenza, Joseph V. (Greenville)
Subject: RE: Service of Plaintiff's Supplemental Request for Production – Comparator Discipline Evidence

Ms. Nelson:

With respect to your Sixth and Seventh Requests for Production of Documents, which you sent yesterday via email, Defendants do not intend to respond to these discovery requests consistent with the Court's December 15, 2025 Order (ECF No. 251). That Order made clear:

At this juncture, the discovery deadline has expired, except to allow the parties to comply with the orders and instructions set forth herein. Thus, any additional discovery requests served after the date of this Order are untimely, and the parties need not comply with them.

Though you are referring to these requests as "Supplemental Requests," the requests seek new information and far exceed asking Defendants to supplement previous discovery responses. Nothing in the Court's December 15 Order or the Federal Rules of Civil Procedure requires Defendants to respond to these new discovery requests.



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From: Debra Nelson [REDACTED] >
Sent: Thursday, January 8, 2026 3:16 PM
To: Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>
Subject: Re: Service of Plaintiff's Supplemental Request for Production – Comparator Discipline Evidence

Attached is an updated Supplemental Seventh RFP

On Thu, Jan 8, 2026 at 2:04 PM Debra Nelson <nelsondebra62@gmail.com> wrote:

Counsels,

Please find attached **Plaintiff's Supplemental (Seventh) Request for Production of Documents to Defendant Curtiss-Wright Electro-Mechanical Corp.**

This supplemental request is **narrowly tailored** and seeks non-duplicative, internal management communications concerning disciplinary actions and performance issues involving identified comparators, including:

- Management communications regarding discipline of Brian Fogarty,
- Management communications regarding Patrick Ingram's failure to perform assigned NDI duties raised by Plaintiff on or about July 12, 2023, and
- Management communications concerning discipline imposed on Plaintiff for alleged "positive work environment" issues.

As reflected in the Requests, Plaintiff does **not** seek emails sent to Plaintiff, documents already produced, or duplicative materials. The Requests are directed to comparator and disparate-treatment evidence relevant to Plaintiff's claims.

Please confirm receipt. Production is requested in accordance with the discovery deadline of **January 30, 2026**.

Regards,
Debra Nelson
Pro Se Plaintiff

A large black rectangular redaction box covering the signature and any handwritten notes or dates that might have been present.